Festive enthusiasm high, absolute ban on firecrackers no solution, but don't make mockery of our orders: SC to Delhi govt

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Diwali Preparations in Ahmedabad (File Photo/ANI). Image Credit: ANI

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By Shashwat Singh New Delhi [India], October 29 (ANI): Acknowledging that an absolute ban on firecrackers may not be a solution given the high festive enthusiasm among people during Diwali and other festivals, the Supreme Court on Thursday pulled up the Delhi government and the Commission for Air Quality Management (CAQM) for failing to demonstrate effective implementation of its earlier directions regulating firecracker use during Delhi's winter festival-cum-pollution season.

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enforced, particularly on the days when firecrackers are permitted.

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A bench of Justices MM Sundresh and PB Varale said the Court understood the sentiment surrounding festivals but stressed that authorities must find a way to regulate firecracker use without causing harm to others. The Court clarified that it was not seeking an absolute ban, but wanted its existing directions to be effectively enforced, particularly on the days when firecrackers are permitted. The bench said it understood that people would have enthusiasm during festivals and that authorities could not simply proceed by filing cases against ordinary people. Instead, it said the focus should be on ensuring that its regulatory directions are followed and that the public is made aware of the consequences of firecracker use.

"During festivals, enthusiasm among the public is high. They are normal people. We cannot file cases against them, but what you can do is ensure our orders are implemented," the Court said. The bench said the authorities needed to "tighten" the regulatory and monitoring mechanism and ensure that the Court's directions did not remain confined to orders and affidavits.

"We also understand the sentiment of the public. We are not on religion. But we are on the logical thing. How will we actually celebrate a festival without causing any harm to anybody?" the Court said. The bench questioned the authorities about what action had actually been taken pursuant to its earlier orders and sought concrete data on enforcement.

It asked whether teams constituted pursuant to the directions had visited the identified areas, when they had visited, what data they had submitted and whether there was any assessment of areas where the AQI had spiked and those where it had not.

“What did you actually do? Unless you can tell us what you have done, what is the point of passing orders? It becomes a mockery then,” the Court said. The bench also warned that authorities could not return every year with similar submissions without demonstrating whether its directions had made any difference on the ground.

“Next year you will make a similar submission when we will not be there (to another bench),” the Court said. The Court said the matter could not be treated as an adversarial proceeding against the authorities as it concerned the health and well-being of “every living being”. It urged the authorities to look at the issue at a higher level, particularly in view of the health impact of air pollution.

Senior advocate Gopal Sankaranarayanan, appearing for petitioner Arjun Gopal in the firecracker matter, submitted that the Court’s directions regulating firecracker use had repeatedly been violated. The amicus curiae also pointed to the absence of a holistic assessment of last year’s partial relaxation, the use of prohibited firecrackers despite only green crackers being permitted and the lack of meaningful data from enforcement teams on violations. The Court also flagged the absence of proper compliance and impact reports. It noted that out of 29 CAQM units, only nine were functioning and questioned the authorities about the actual monitoring undertaken pursuant to its directions.

The amicus submitted that there was no data showing which enforcement teams had visited which locations and when. The Court sought to know whether the teams had actually undertaken the activities required under its orders and whether the authorities could demonstrate their impact. The bench also observed that the consequences of air pollution were not receiving the same level of public attention as other serious incidents, despite the issue affecting life expectancy and children in particular.

The Court stressed that public awareness therefore had to be an important part of the authorities' response. It suggested involving prominent public figures and sports personalities to communicate the impact of firecrackers to the public, referring to cricketer Virat Kohli as an example. "In an attempt, use prominent personality, somebody like Virat Kohli, to spread awareness," the Court said.

The bench also drew a distinction between the festival and the use of firecrackers, observing that the festival was traditionally associated with light rather than the burning of crackers. "It's a festival of light. It was not there originally a problem. Problem came when firecrackers came. Otherwise we used to light lamps and it was beautiful. Ultimately problem is fire, not light," the Court observed.

The Court also said authorities should concentrate on the two days when firecrackers are permitted and ensure that officers are physically present on the ground to enforce the restrictions. It suggested that construction activity should be banned absolutely during those two days to limit the combined pollution burden. The Court's observations came during the hearing of the suo motu proceedings concerning the burning of firecrackers and their impact on air quality in Delhi-NCR.

At one stage, while responding to the amicus' submissions on the increase in pollution after firecrackers were used last year after Court partially lifted the ban, the Court considered whether imposing a absolute ban on firecrackers is a solution. "So what you're saying is it should be closed?" the Court asked the amicus while considering the submission on the violations and the impact of firecracker burning.

The bench also observed that if firecrackers are burnt, an increase in air pollution would inevitably follow. "Obviously when you burn crackers it goes without saying, it's going to happen," the Court said.

Additional Solicitor General Aishwarya Bhati, appearing for the Delhi government, acknowledged that there was no denying that air pollution had increased when firecrackers were burnt during the permitted period last year. At the same time, she submitted that the authorities had strengthened their preparedness for the upcoming pollution season. Bhati

referred to the measures taken by the Delhi government and CAQM, including anti-smog guns, electric vehicle charging infrastructure, greening initiatives and enhanced monitoring. The Delhi government said 608 anti-smog guns had been put in place and an action plan had been prepared for the winter pollution season.

She also referred to the enhanced monitoring network and measures including “Vayu Rakshak”, road development and pothole repairs, submitting that the authorities had “pulled up our socks” across these areas and were prepared for the upcoming pollution season. The Court, however, emphasised that preparedness on paper would not be enough unless the authorities could demonstrate implementation on the ground. (ANI)

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